

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 07/15/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULINGS
IN DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C22-01284 CASE NAME: DUSTIN GRAHAM VS. ALLIED WASTE SYSTEMS, INC. CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This case management conference (CMC) trails the hearing for Line 2, below. As the Motion for Preliminary Approval and PAGA Settlement is granted and no appearance is required, this CMC is also **vacated**. No appearance is necessary on July 15, 2026.

Law & Motion

2. 9:00 AM CASE NUMBER: C22-01284
CASE NAME: DUSTIN GRAHAM VS. ALLIED WASTE SYSTEMS, INC.
HEARING ON MOTION IN RE: PRELIMINARY APPROVAL AND PAGA SETTLEMENT
FILED BY: GRAHAM, DUSTIN

TENTATIVE RULING:

Summary

Plaintiffs Dustin Graham and Jose Valadez's ("Plaintiffs") Motion for Preliminary Approval of Class Action and PAGA Settlement is **granted** as set forth herein. No appearance is required at the July 15, 2026 hearing.

Background

Plaintiffs move for an order granting preliminary approval of the Settlement and certifying the Settlement Class with Defendant Allied Waste Systems, Inc. ("Defendant") pursuant to the terms set forth in the Joint Stipulation of Class Action Settlement and Release, which are summarized below.

The total Gross Settlement Amount is \$345,000.00. The Net Settlement Amount, estimated at \$158,311.50, shall be distributed to Class Members and PAGA Group Members on a pro-rata basis after deduction of: (a) attorneys' fees of \$114,988.50 (33.33% of the Gross Settlement Amount); (b) litigation costs not to exceed \$25,000.00; (c) Class Representative enhancement awards of \$10,000.00 each; (d) Settlement Administrator fees of \$7,950.00; and (e) PAGA penalties totaling \$25,000.00.

Plaintiffs request that they be confirmed as Class Representatives and ask that the Court preliminarily approve Class Representative enhancement awards of \$10,000.00 each in recognition of their service to the Class. These awards shall be paid from the Gross Settlement Amount.

Plaintiffs request that the Court appoint the law firms of Castle Law: California Employment Counsel, PC, and Blumenthal Nordrehaug Bhowmik De Blouw LLP as Class Counsel. Class Counsel request attorneys' fees in the amount of \$114,988.50 and reimbursement of reasonable litigation costs not to exceed \$25,000.00, both to be paid from the Gross Settlement Amount.

The Settlement allocates \$25,000.00 for PAGA penalties, to be paid from the Gross Settlement Amount. Of this amount, \$18,750.00 shall be paid as penalties to the California Labor and Workforce Development Agency (LWDA), and \$6,250.00 shall be distributed to PAGA Members on a pro-rata basis from the Net Settlement Amount.

Plaintiffs request that the Court confirm ILYM Group, Inc. as the Settlement Administrator and preliminarily approve payment of \$7,950.00 for administration of the Settlement. Plaintiffs further request that the Court approve the Notice of Class Action Settlement as to form and content and direct that it be mailed by first-class mail to Class Members in accordance with the Implementation Schedule.

Pending final approval, Plaintiffs request that the Court enjoin Plaintiffs and all Class Members from filing or prosecuting any claims, suits, or administrative proceedings (including claims with the Division of Labor Standards Enforcement) regarding claims released by the Settlement, unless such Class Members have filed valid Requests for Exclusion with the Settlement Administrator. The released

claims include claims for unfair competition, failure to pay minimum and overtime wages, and failure to provide meal and rest periods.

Plaintiffs request that the Court schedule a Final Approval Hearing to determine whether the proposed Settlement, Class Counsel Award, and Class Representative Service Awards should be finally approved as fair, reasonable, and adequate. Class Members may participate in, opt out of, or object to the Settlement as set forth in the Settlement Notice and Joint Stipulation. Defendant shall provide Class Information to the Settlement Administrator within twenty-one (21) days following preliminary approval.

Analysis

The primary determination is whether the proposed settlement is "fair, reasonable, and adequate" under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801. The factors include "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also, *Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521.)

California law provides guidance concerning judicial approval of class action settlements. First, public policy favors settlement (*Neary v. Regents of Univ. of Cal.* (1992) 3 Cal.4th 273), but the court must not approve an agreement contrary to law or public policy (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127). Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*Cal. State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) Consequently, courts have noted that *Neary* does not apply where public rights are implicated, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorneys' Fees

Plaintiffs' counsel seek attorneys' fees of \$114,988.50 representing one-third of the total settlement amount, relying on the common fund doctrine. Even under the common fund theory, however, the fee award should be reviewed through a *Lodestar* cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the *Lodestar* cross-check as a method to determine whether the percentage allocated is reasonable. The Court stated: "If the multiplier calculated by means of a *Lodestar* cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.* at p. 505.) Following typical practice, however, the Court will not consider the fee award at this preliminary approval stage, but reserves review for final approval.

Similarly, litigation costs in the amount of \$25,000.00 and the requested representative payment of \$10,000 for each named plaintiff and class representative will be reviewed at the time of final approval. Criteria for evaluating representative payment requests are discussed in *Clark v. American Residential Services, LLC* (2009) 175 Cal.App.4th 785, 804-807.

Upon review, there is good cause to find that the Settlement appears to be fair, adequate, and reasonable to the Class and falls within the range of reasonableness, subject only to objections that may be raised at the Final Approval Hearing. Good cause, therefore appearing, the Court makes the following orders and ruling.

RULING

1. The settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval. The motion is **granted**.
2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order lodged on September 29, 2025, attaching a copy of this ruling.
3. Counsel are ordered to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are ordered to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384, subdivision (b).
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorneys' fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release of attorneys' fees through an unreported minute order without a hearing upon review of the compliance statement representing full compliance with the Court's Final Order Approving Settlement.
6. No appearance is required at the hearing on July 15, 2026.

3. 9:00 AM CASE NUMBER: C22-01164
CASE NAME: ALEJANDRO TORRES VS. B & M TEAR OFF, INC.
HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT
FILED BY: TORRES, ALEJANDRO

TENTATIVE RULING:

Summary

Plaintiffs Alejandro Torres', individually, and on behalf of others similarly situated ("Plaintiff") Motion for Leave to File Plaintiff's First Amended Complaint, filed on September 30, 2026, is unopposed and is **granted**.

Ruling

1. Plaintiff's Motion for Leave to file First Amended Complaint is **granted**.
2. Plaintiff shall file and serve the First Amended Complaint no later than ten (10) days from the date of this hearing.
3. Defendants' responsive pleading shall be filed no later than thirty (30) days from the date of service.

4. No appearance is required at the hearing on July 15, 2026.

4. 9:00 AM CASE NUMBER: C22-02114
CASE NAME: SUZANNE FEE VS. CAMBRIDGE MANAGEMENT COMPANY
HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION
FILED BY: FEE, SUZANNE

TENTATIVE RULING:

Summary

Plaintiff Suzanne Fee ("Plaintiff") seeks Preliminary Approval of Class Action Settlement with Defendant Cambridge Management Company ("Defendant"). The Motion is unopposed and is **granted** as set forth herein. No appearance is required at the hearing on July 15, 2026.

Background

Plaintiff requests that the Court grant preliminary approval of the Settlement and certify the Settlement Class pursuant to the terms set forth in the Settlement Agreement. The Settlement Class is defined as all current and former non-exempt employees of Defendant who worked in California at any time from October 3, 2018 through July 17, 2025. Based on Defendant's records, the Class consists of approximately 256 individuals who collectively worked 33,030 workweeks during the Class Period. Plaintiff requests that the Court confirm Suzanne Fee as the Class Representative and Otkupman Law Firm, A Law Corporation as Class Counsel.

The total Gross Settlement Amount is Two Hundred Fifty Thousand Dollars (\$250,000.00). From this amount, the following deductions shall be made prior to distribution to Participating Class Members: (a) attorneys' fees of Eighty-Two Thousand Five Hundred Dollars (\$82,500.00), representing one-third of the Gross Settlement Amount; (b) litigation costs not to exceed Twenty Thousand Dollars (\$20,000.00); (c) a Class Representative service payment of Ten Thousand Dollars (\$10,000.00) to Suzanne Fee; and (d) Settlement Administrator fees not to exceed Six Thousand Dollars (\$6,000.00). The Net Settlement Amount shall be distributed to Participating Class Members on a pro-rata basis based on workweeks worked during the Class Period.

Plaintiff requests that the Court preliminarily approve a Class Representative service payment of Ten Thousand Dollars (\$10,000.00) to Suzanne Fee in recognition of her efforts on behalf of the Class, including her participation in discovery and mediation. This payment shall be issued with an IRS Form 1099.

Plaintiff requests that the Court award Class Counsel attorneys' fees in the amount of Eighty-Two Thousand Five Hundred Dollars (\$82,500.00) and reimbursement of litigation costs not to exceed Twenty Thousand Dollars (\$20,000.00), both to be paid from the Gross Settlement Amount.

Plaintiff requests that the Court appoint ILYM Group as the Settlement Administrator and approve administration costs not to exceed Six Thousand Dollars (\$6,000.00). The Settlement Administrator shall manage all aspects of claims administration, including preparation and dissemination of the Class Notice, processing requests for exclusion, calculating individual settlement payments, and distributing funds to Participating Class Members. Plaintiff requests that the Court approve the Class Notice and Exclusion Form as to form and content and direct that notice be provided to Class Members in

accordance with the procedures set forth in the Settlement Agreement.

Participating Class Members shall release Defendant from all claims asserted in the operative complaint and any claims that could have been asserted based on the facts alleged therein, including claims for failure to provide meal and rest periods; failure to pay minimum wages, overtime, and double-time wages; failure to maintain accurate employment records; wage statement violations; untimely payment of wages at termination; failure to reimburse business expenses; unlawful deductions; failure to provide a safe and healthful workplace; and violations of Business and Professions Code section 17200. Class Members do not release claims for vested benefits, wrongful termination, violations of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation, or claims based on facts occurring outside the Class Period.

Individual Class Payments shall be calculated by dividing the Net Settlement Amount by the total number of workweeks worked by all Participating Class Members during the Class Period, then multiplying that result by each Participating Class Member's individual workweeks. This per-workweek allocation method ensures that recovery is proportional to each Class Member's time worked during the Class Period.

A Final Approval Hearing shall be held to determine whether the Settlement, Class Counsel's fee application, and the Class Representative service award should be finally approved as fair, reasonable, and adequate. Class Members may participate in the Settlement, submit requests for exclusion, or file objections as provided in the Class Notice. Pending final approval, Plaintiff requests that the Court enjoin Class Members from prosecuting any released claims, unless they have submitted valid requests for exclusion.

Upon review, there is good cause to find that the Settlement appears to be fair, adequate, and reasonable to the Class and falls within the range of reasonableness, subject only to objections that may be raised at the Final Approval Hearing. Good cause, therefore appearing, the Court makes the following orders and ruling.

Analysis

The primary determination is whether the proposed settlement is "fair, reasonable, and adequate" under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801. The factors include "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also, *Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521.)

California law provides guidance concerning judicial approval of class action settlements. First, public policy favors settlement (*Neary v. Regents of Univ. of Cal.* (1992) 3 Cal.4th 273), but the court must not approve an agreement contrary to law or public policy (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127). Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*Cal. State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) Consequently, courts have noted that *Neary* does not apply where public rights are

implicated, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorneys' Fees

Plaintiffs seek attorneys' fees of \$82,500.00 representing one-third of the total settlement amount, relying on the common fund doctrine. Even under the common fund theory, however, the fee award should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the *Lodestar* cross-check as a method to determine whether the percentage allocated is reasonable. The Court stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (Id. at p. 505.) Following typical practice, however, the Court will not consider the fee award at this preliminary approval stage, but reserves review for final approval.

Similarly, litigation costs in the amount not to exceed \$20,000.00 and the requested service payment of \$10,000 to the class representative will be reviewed at the time of final approval. Criteria for evaluating representative payment requests are discussed in *Clark v. American Residential Services, LLC* (2009) 175 Cal.App.4th 785, 804-807.

The Settlement appears to be fair, adequate, and reasonable to the Class and falls within the range of reasonableness, subject only to objections that may be raised at the Final Approval Hearing. Good cause appearing, the Court makes the following orders and ruling.

Ruling

1. The settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval. The motion is **granted**.
2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order lodged October 8, 2025, attaching a copy of this ruling.
3. Counsel are ordered to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiff's counsel is to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384, subdivision (b).
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorneys' fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release of attorneys' fees through an unreported minute order without a hearing upon review of the compliance statement representing full compliance with the Court's Final Order Approving Settlement.
6. No appearance is required at the hearing on July 15, 2026.

5. 9:00 AM CASE NUMBER: C22-02161
CASE NAME: LAKEITHIA JOHNSTON VS. GEORGIA-PACIFIC GYPSUM LLC
HEARING ON MOTION IN RE: COMPLIANCE HEARING OF CLASS SETTLEMENT SET BY THE COURTROOM
FILED BY:

TENTATIVE RULING:
Summary

This Compliance Hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on August 12, 2025.

Upon review of the declaration filed by Madely Nava of Apex Class Action certifying disbursement filed on June 30, 2026, the Court determines that Plaintiff has complied with the Court's order.

Good cause appearing, the Court makes the following orders:

1. The Court orders the release of the 5% retention of attorney's fees in the amount of \$15,833.30 to Plaintiff's Counsel. The Class Action Administrator shall release said fees no later than ten (10) days from the date of this Order.
2. The Court orders Plaintiff's Counsel to prepare final judgment and Notice of Entry of Judgment of this matter.
3. No appearance is required at the hearing on July 15, 2026.

6. 9:00 AM CASE NUMBER: C22-02261
CASE NAME: MICHAEL GONZALES VS. MECHANICS BANK
HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT
FILED BY: GONZALES, MICHAEL

TENTATIVE RULING:
Summary

Plaintiffs Michael Gonzales and Nicole Burton ("Plaintiffs"), on behalf of themselves and all persons similarly situated, filed a Motion for Preliminary Approval of Class Action and PAGA Settlement with Defendant Mechanics Bank ("Defendant"). The motion is unopposed and is **granted** as set forth herein. No appearance is required at the hearing on July 15, 2026, provided counsel complies with the orders herein.

Background

Plaintiffs request that the Court grant preliminary approval of the Settlement and conditionally certify the Settlement Class pursuant to the terms set forth in the Stipulation of Settlement of Class and PAGA Action Claims and Release of Claims. The Settlement Class is defined as all non-exempt employees who are or previously were employed by Defendant Mechanics Bank and/or Rabobank, N.A. as direct employees and performed work in California during the period from October 20, 2018, to November 12, 2024. The Class excludes any non-exempt employees who previously entered into settlement or severance agreements with Defendant and/or Rabobank, N.A. that cover the entirety of the Class Period. The Class consists of approximately 2,280 Class Members. Plaintiffs request that the

Court confirm Michael Gonzales and Nicole Burton as the Class Representatives and appoint JCL Law Firm, APC, Zakay Law Group, APLC, and Ebrahimian & Lavi, LLP as Class Counsel.

The proposed total Gross Settlement Amount is Three Million Fifty Thousand Dollars and Zero Cents (\$3,050,000.00), which is non-reversionary. From this amount, the following deductions shall be made prior to distribution to Settlement Class Members:

- (a) Attorneys' fees in an amount not to exceed one-third of the Gross Settlement Amount, currently estimated at One Million Sixteen Thousand Six Hundred Sixty-Six Dollars and Sixty-Seven Cents (\$1,016,666.67);
- (b) Litigation costs and expenses not to exceed Forty-Five Thousand Dollars and Zero Cents (\$45,000.00);
- (c) Class Representative service awards of not more than Ten Thousand Dollars and Zero Cents (\$10,000.00) to each Plaintiff, for a total not to exceed Twenty Thousand Dollars and Zero Cents (\$20,000.00);
- (d) PAGA Payment of One Hundred Fifty Thousand Dollars and Zero Cents (\$150,000.00); and
- (e) Settlement Administration Costs not to exceed Seventeen Thousand One Hundred Dollars and Zero Cents (\$17,100.00). Defendant shall separately pay its share of employer payroll taxes.

Plaintiffs request that the Court preliminarily approve Class Representative service awards of not more than Ten Thousand Dollars and Zero Cents (\$10,000.00) each to Plaintiffs Michael Gonzales and Nicole Burton, for a total not to exceed Twenty Thousand Dollars and Zero Cents (\$20,000.00), in recognition of their efforts and risks in assisting with the prosecution of this action. These awards represent fair compensation for the time, effort, and risk undertaken by the Class Representatives in pursuing this litigation on behalf of the Class.

Plaintiffs request that the Court award Class Counsel attorneys' fees in an amount not to exceed one-third of the Gross Settlement Amount, currently estimated at One Million Sixteen Thousand Six Hundred Sixty-Six Dollars and Sixty-Seven Cents (\$1,016,666.67), and reimbursement of litigation costs and expenses not to exceed Forty-Five Thousand Dollars and Zero Cents (\$45,000.00), both to be paid from the Gross Settlement Amount. Plaintiffs request that the Court find that the fee request, representing one-third of the Gross Settlement Amount, falls within the range of reasonableness for common fund class actions, subject to final approval following review of the lodestar cross-check and any objections.

Plaintiffs request that the Court approve a PAGA Payment of One Hundred Fifty Thousand Dollars and Zero Cents (\$150,000.00) to be allocated from the Gross Settlement Amount for settlement of claims for civil penalties under the Private Attorneys General Act of 2004. Seventy-five percent (75%) of the PAGA Payment (\$112,500.00) shall be paid to the Labor and Workforce Development Agency, and twenty-five percent (25%) of the PAGA Payment (\$37,500.00) shall be distributed to the Aggrieved Employees. The Aggrieved Employees are defined as all non-exempt employees who are or previously were employed by Defendant and/or Rabobank, N.A. as direct employees and performed work in California during the PAGA Period from March 7, 2023, to November 12, 2024. Plaintiffs request that the Court appoint Apex Class Action LLC as the Settlement Administrator and approve administration costs not to exceed Seventeen Thousand One Hundred Dollars and Zero Cents (\$17,100.00).

The Net Settlement Amount of approximately One Million Eight Hundred One Thousand Two Hundred Thirty-Three Dollars and Thirty-Three Cents (\$1,801,233.33) shall be allocated to all Settlement Class Members on a pro-rata basis according to the number of workweeks each Settlement Class Member worked during the Class Period, resulting in an estimated average Individual Settlement Payment of Seven Hundred Ninety Dollars and One Cent (\$790.01). Defendant shall fund the Gross Settlement Amount in one lump sum payment within thirty (30) calendar days after the Effective Date. Within fifteen (15) calendar days after the funding date, the Settlement Administrator shall pay all Individual Settlement Payments, the PAGA Payment, the Settlement Administration Costs, Attorneys' Fees, Attorneys' Expenses, and the Class Representative Service Awards, as determined by the Court at the Final Approval Hearing.

Participating Class Members shall release Defendant from all claims asserted in the operative complaints and any claims that could have been asserted based on the facts alleged therein, including claims for failure to provide compliant meal and rest periods; failure to reimburse employees for all necessary business expenses; failure to pay for all hours worked; improper calculation of the regular rate of pay for purposes of overtime, sick pay, and meal period premiums; failure to pay minimum wages and overtime wages; failure to provide accurate itemized wage statements; failure to pay wages when due; and violations of Business and Professions Code section 17200. This stipulation to certification is for settlement purposes only and shall not be deemed admissible in this or any other proceeding should this Settlement not become final.

A Final Approval Hearing shall be held to determine whether the Settlement, Class Counsel's fee application, and the Class Representative service awards should be finally approved as fair, reasonable, and adequate. Class Members may participate in the Settlement, submit requests for exclusion, or file objections as provided in the Notice of Settlement. Pending final approval, Plaintiffs request that the Court enjoin Class Members from prosecuting any released claims, unless they have submitted valid requests for exclusion.

Analysis

The primary determination is whether the proposed settlement is "fair, reasonable, and adequate" under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801. The factors include "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also, *Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521.)

California law provides guidance concerning judicial approval of class action settlements. First, public policy favors settlement (*Neary v. Regents of Univ. of Cal.* (1992) 3 Cal.4th 273), but the court must not approve an agreement contrary to law or public policy (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127). Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*Cal. State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) Consequently, courts have noted that *Neary* does not apply where public rights are implicated, because "w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose."

(*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorneys' Fees

Plaintiffs seek attorneys' fees of \$1,016,666.67 representing one-third of the total settlement amount, relying on the common fund doctrine. Even under the common fund theory, however, the fee award should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the *Lodestar* cross-check as a method to determine whether the percentage allocated is reasonable. The Court stated: "If the multiplier calculated by means of a *Lodestar* cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (Id. at p. 505.) Following typical practice, however, the Court will not consider the fee award at this preliminary approval stage, but reserves review for final approval.

Similarly, litigation costs in the amount of \$45,000.00 and the requested service payment of \$10,000.00 for each named plaintiff and class representative will be reviewed at the time of final approval. Criteria for evaluating representative payment requests are discussed in *Clark v. American Residential Services, LLC* (2009) 175 Cal.App.4th 785, 804-807.

The Settlement appears to be fair, adequate, and reasonable to the Class and falls within the range of reasonableness, subject only to objections that may be raised at the Final Approval Hearing. Good cause appearing, the Court makes the following orders and ruling.

Ruling

1. The settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval. The motion is **granted**.
2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order lodged October 6, 2025, attaching a copy of this ruling.
3. Counsel are ordered to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are ordered to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384, subdivision (b).
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorneys' fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release of attorneys' fees through an unreported minute order without hearing upon review of the compliance statement representing full compliance with the Court's Final Order Approving Settlement.
6. No appearance is required at the hearing on July 15, 2026.

7. 9:00 AM CASE NUMBER: C22-02298
CASE NAME: ISAIAS MENDOZA MEDINA VS. DESERT PARKS LANDSCAPING, INC
HEARING IN RE: FINAL ACCOUNTING AND DISTRIBUTION
FILED BY:

TENTATIVE RULING:

Summary:

This hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on July 17, 2025, and Judgment riled on July 29, 2025.

Upon review of the declaration filed by Garvin Brown of ILYM , the Court determines that Plaintiff's Counsel has complied with the Court's order.

Good cause appearing, the Court makes the following order:

1. The Court finds that Plaintiff has complied with the Court's Order and Judgment.
2. No appearance is required at the hearing on July 15, 2026.

8. 9:00 AM CASE NUMBER: C23-00119
CASE NAME: KIERRA RUSSO VS. MARKSTEIN SALES COMPANY.,
HEARING IN RE: COMPLIANCE HEARING SET BY THE COURTROOM
FILED BY:

TENTATIVE RULING:

This hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on May 28, 2025.

Upon review of the declaration filed by Connor Tevin, the Class Action Settlement Administrator, the Court finds and determines that Plaintiff's Counsel has complied with the Court's order. Good cause appearing, the Court makes the following orders:

Ruling

1. The Court orders the release of the 5% retention of attorney's fees in the amount of \$7,166.67 to Plaintiff's Counsel. The Class Action Administrator shall release said fees no later than ten (10) days from the date of entry of this order.
2. The Court orders Plaintiff's Counsel to prepare final judgment and Notice of Entry of Judgment of this matter.
3. No appearance is required at the hearing on July 15, 2026.

9. 9:00 AM CASE NUMBER: C23-01450
CASE NAME: JEANIE BURTON VS. JOINN BIOLOGICS US INC.
HEARING ON MOTION IN RE: FINAL APPROVAL / ACCOUNTING
FILED BY:

TENTATIVE RULING:

Summary:

This final accounting hearing was set by the Court to determine compliance with the Court's Order Granting Approval of PAGA Settlement and Final Judgment filed on May 28, 2025. No compliance statement or declaration was prepared by Plaintiff's Counsel as ordered by the Court.

This matter is **continued** to August 19, 2026 at 9:00 a.m. On August 19, 2026, Plaintiff's Counsels Bradley Grombacher LLP and Capstone Law PC are **ordered to appear in person and ordered to show cause** as to why they should not be held in contempt for failing to comply with the Court's order to prepare and file a compliance statement. No remote appearance is authorized for this hearing.

The OSC may be discharged, and Counsel may appear remotely at the August 19, 2026 hearing, if Counsel complies with the Court's order by filing and serving a compliance statement prepared by the Class Action Administrator with the Court at least five (5) court days before the hearing.

10. 9:00 AM CASE NUMBER: C23-01818
CASE NAME: SHYLA THIERRY VS. BAKEMARK USA LLC
HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM
FILED BY:

TENTATIVE RULING:

Summary:

This hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on December 2, 2025, entered on December 3, 2025.

Upon review of the declaration filed by Taylor Mitzner, Class Action Settlement Administrator, the Court determines that Plaintiff's Counsel has complied with the Court's orders. Good cause appearing, the Court makes the following orders:

1. The Court orders the release of the 5% retention of attorney's fees in the amount of \$2,783.33 to Plaintiff's Counsel. The Class Action Administrator shall release said fees no later than ten (10) days from the date of entry of this order.
2. The Court orders Plaintiff's Counsel to prepare final judgment and Notice of Entry of Judgment of this matter.
3. No appearance is required at the hearing on July 15, 2026.

11. 9:00 AM CASE NUMBER: C23-01864
CASE NAME: ANNA RUIZ VS. FORMA ALMADEN VALLEY, LLC
HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM
FILED BY:

TENTATIVE RULING:

Summary:

This hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on September 19, 2026.

Upon review of the declaration filed by Nicole Bench, Class Action Settlement Administrator from ILYM Group, Inc., the Court determines that Plaintiff's Counsel has complied with the Court's order.

Good cause appearing, the Court makes the following order:

1. The Court shall order the release of the 5% retention of attorney's fees in the amount of \$7,087.5 to Plaintiff's Counsel by the Class Action Administrator upon completion of the distribution process and approval of final accounting.
2. The Court orders Plaintiff's Counsel to prepare final judgment and Notice of Entry of Judgment of this matter.
3. No appearance is required at the hearing on July 15, 2026.

12. 9:00 AM CASE NUMBER: C24-02485
CASE NAME: ANTHONY BRAKOHIAPA VS. CHEVRON PRODUCTS COMPANY
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO FRANK TALBOTT, V
FILED BY: CHEVRON PRODUCTS COMPANY

TENTATIVE RULING:

Background

Defendant Chevron Products Company ("Defendant") filed a Notice of Motion and Motion for an Order Admitting Frank Talbott, Esq. ("Applicant") to Appear *Pro Hac Vice* ("Motion"). The Motion was brought through Defendant's counsel, McGuire Woods, LLC and supported by the Verified Application of Applicant. The Proof of Service indicates that service was accomplished via U.S. Mail on January 15, 2026. No timely opposition was filed with the Court. This Motion is **granted** as set forth herein. No appearance is required at the hearing on July 15, 2026.

Analysis

California Rules of Court Rule No. 9.40 permits this Court to grant a written application for leave to appear *pro hac vice* to an applicant who is not a member of the State Bar of California, but who is admitted to practice and in good standing with the highest court of another state. The applicant must associate with an active member of the State Bar of California, who shall be responsible for the applicant's conduct in the proceeding. (Cal. Rules of Court, Rule 9.40(a).)

Upon review, the Court finds that Applicant's verified application satisfies the requirements of Rule

9.40. Applicant declares under penalty of perjury that he is an attorney licensed to practice in the State of Virginia and in the Federal Courts of Virginia and Michigan. Applicant is employed by McGuire Woods. Applicant is not a member of the State Bar of California, nor is Applicant a resident of this state, nor does Applicant maintain regular employment or substantial business herein.

Applicant further represents that he/she has not been suspended, disbarred, or resigned from the practice of law in any jurisdiction. No court has Applicant's application for admission *pro hac vice*.

Having considered the moving papers and the applicable law, the Court finds that the Motion satisfies the requirements of California Rule of Court 9.40.

Ruling

1. Defendant's Motion for Admission of Applicant Pro Hac Vice is **granted**. Applicant is admitted to appear *pro hac vice* for the duration of this action, subject to the conditions set forth in California Rule of Court 9.40.
2. The Clerk is directed to file the proposed order lodged with the Court on January 15, 2026, attaching a copy of this ruling. Moving party shall file a copy with the State Bar of California.
3. No appearance is required at the hearing on July 15, 2026.

13. 9:00 AM CASE NUMBER: C25-00110
CASE NAME: MARLON ROBINSON VS. SAMMY MIZIRAWI
HEARING ON DEMURRER TO: RE 2ND AMENDED COMPLAINT
FILED BY: MIZIRAWI, SAMMY
TENTATIVE RULING:

Defendant, Sammy Mizirawi, demurs to the fifth, seventh, and eighth causes of action in plaintiffs' Second Amended Complaint ("SAC"). The demurrer is **sustained**. The motion to strike is **granted**. Defendant shall file and serve his answer on or before July 27, 2026.

Because plaintiffs fail to provide any proposed facts that would change the outcome herein, leave to amend is **denied**. If plaintiffs contest this ruling, they shall come to the hearing prepared to discuss any additional facts that might be added to an amended complaint.

I. Background

Plaintiffs, Marlon Robinson and Sandra Robinson, signed a lease and moved into the subject premises in 2014. (SAC, ¶18.) In December of 2023, plaintiff began experiencing problems that materially affected the habitability of the premises. (*Id.* at ¶19.) In January 2024, plaintiff discovered mushrooms and black mold growing on the walls and carpet inside the premises and behind, and on, his stereo components. (*Id.* at ¶20.) Plaintiff complained to his landlord, defendant Sammy Mizirawi, who came and ineffectively washed the walls with bleach. (*Ibid.*) During this time plaintiff experienced a lot of coughing and was prescribed medications. (*Id.* at ¶21.) Plaintiff purchased a mold test kit to confirm the presence of mold. (*Id.* at ¶22.)

On or about January 26, 2023, while plaintiff Sandra Robinson was sleeping on the couch, the ceiling fell in due to a water leak, causing large amounts of insulation to drop onto her, the couch, the table, and the floor. (SAC, ¶23.) As of August 2024, the leak in the roof was still not repaired, black

mold and mushrooms continued to grow on the walls and on plaintiff's furniture, and plaintiff lost property due to defendant's failure to remedy the uninhabitable conditions. (*Id.* at ¶25.) By September 2024, plaintiff was forced to vacate the premises. (*Id.* at ¶26.) On information and belief, plaintiff alleges defendant "engaged in a pattern of harassment and intimidation of plaintiff calculated to circumvent lease(s) provisions, state and local law and to induce plaintiff to vacate the Subject Premises and involuntarily give up plaintiff's tenancy rights[.]" (*Id.* at ¶27.)

Plaintiff brought suit against defendant on January 13, 2025, alleging nine causes of action: (1) Breach of Contract; (2) Breach of the Covenant of Quiet Enjoyment – Contract; (3) Breach of Implied Warranty of Habitability; (4) Negligence (including Negligence Per Se); (5) Intentional Infliction of Emotional Distress ("IIED"); (6) Bad Faith Business Practices (B&P § 17200, et seq.); (7) Fraud; (8) Negligent Misrepresentation; and; (9) Nuisance. After a demurrer was sustained to the fifth, seventh, and eighth causes of action (IIED, fraud, and negligent misrepresentation, respectively), parties stipulated to allow the addition of another plaintiff in the First Amended Complaint, then plaintiffs filed the currently-operative SAC on January 20, 2026.

After meeting and conferring with plaintiffs (see Declaration of Harrison Wheeler, Esq.), substantially in compliance with Code of Civil Procedure sections 430.41 (a) and 435.5 (a), defendant filed this demurrer to the fifth, seventh, and eight causes of action, and this motion to strike paragraphs 126, 127, 128, 129, and 130 of the SAC. Plaintiffs oppose both motions.

II. Standard on Demurrer

"When any ground for objection to a complaint, cross-complaint, or answer appears on the face thereof, or from any matter of which the court is required to or may take judicial notice, the objection on that ground may be taken by a demurrer to the pleading." (Code Civ. Proc., § 430.30 (a).) One such grounds for demurrer exists where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) Another such ground is uncertainty. (Code Civ. Proc., § 430.10 (f).) In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

III. Discussion – Demurrer

A. Fifth C/A – IIED

Defendant argues that the SAC still fails to allege the elements of a cause of action for IIED.

The elements of the tort of IIED are (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. To be outrageous, conduct must be "so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Christensen v. Super. Ct.* (1991) 54 Cal.3d 868, 903.) The conduct must be intentional or, where reckless disregard of the plaintiff's interests is the theory of recovery, the presence of the plaintiff at the time the outrageous conduct occurs is essential to the claim. (*Ibid.*)

"In order to avoid a demurrer, the plaintiff must allege with 'great[] specificity' the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 832 quoting *Schlauch v. Hartford Accident & Indemnity Co.* (1983) 146 Cal.App.3d 926, 936.)

Plaintiff references *failures* in maintenance, but no acts “so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (See *Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-1051.) While plaintiffs’ opposition emphasizes that the housing was “substandard,” the providing of the housing is the only act alleged by defendant. The ceiling collapse was unfortunate, but no specific allegations indicate defendant knew such collapse would occur. Simply providing housing (in which plaintiffs had lived for nearly a decade) or failing to regularly inspect, is insufficient.

To the extent that plaintiffs refer to a “pattern of harassment and intimidation,” or any constructive eviction (see SAC, ¶17), no specific (non-conclusory) facts are provided.

Since plaintiffs do not provide any further facts they would allege if permitted, the demurrer to the fifth cause of action is **sustained without leave to amend**, on the basis that the complaint fails to state sufficient facts to constitute a cause of action for IIED. As for uncertainty, the Court previously overruled a demurrer on this ground and neither the revisions to the SAC, nor the arguments in this demurrer, alter that outcome.

B. Seventh and Eighth C/A – Fraud and Negligent Misrepresentation

Defendant challenges the seventh cause of action on the grounds of failure to articulate sufficient facts. Plaintiffs oppose, arguing that the elements of fraud are stated.

“The elements of fraud that will give rise to a tort action for deceit are: (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974, internal quotation marks omitted; see also Civ. Code, §§ 1709-1710.)

The Court previously sustained a demurrer to fraud based on the lack of particularity. Fraud must be pled specifically; general and conclusory allegations do not suffice. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) The policy of liberal construction of the pleadings will therefore not ordinarily be invoked with respect to fraud. (*Ibid.*) This particularity requirement necessitates pleading facts which ‘show how, when, where, to whom, and by what means the representations were tendered.’ (*Ibid.*)

Defendant is alleged to have made misrepresentations that the premises were fit for habitation “through language located within the lease agreement” and “by defendant’s actions offering the Subject Premises as available for rent.” (SAC, ¶18.) Plaintiffs seek to allege multiple representations “[w]hen plaintiff signed the lease agreement and throughout plaintiff’s tenancy.” (SAC, ¶37.) At the same time, the SAC contends that defendant failed to perform “any inspections” to ensure that the premises remained habitable. (SAC, ¶18.)

There is, at best, an *inference* that plaintiffs would not have lived in the premises had they known about the water intrusion issues. However, the tenancy lasted approximately ten years. It was not until December 1, 2023 that “plaintiff began experiencing problems that materially affect the habitability of the Subject Premises.” (SAC, ¶19.) It is unclear whether and when any issues were reported to the landlord. If landlord did not conduct any inspections, as plaintiffs allege, it is unclear how they could justifiably rely on unspecified statements by him, whether oral or in “language located within the lease.”

Further, if the plaintiffs’ SAC accurately states the date of the ceiling collapse—January 26, 2023—then the plaintiffs stayed close to two years beyond that date and reliance on any

representation by the landlord about condition of the premises was not justifiable.

In the SAC, plaintiffs add little in the way of specific additional facts that would elevate the 2023-2024 moisture and mold issues to fraud or misrepresentation issues as far back as 2014.

While plaintiffs allege that defendant misrepresented the problem was “resolved and that the Subject Premises were habitable,” they admit to moving out because the problem persisted. This demonstrates a lack of reliance, not its existence.

The SAC fails to sufficiently allege the misrepresentations, as well as the how, when, where, and by what means they were tendered. The pleading must answer each of these questions for each specific representation alleged. Because the basis on which fraud is alleged is unclear, the cause of action is also uncertain.

The eighth cause of action for negligent misrepresentation is subject to the same analysis because the standard for pleading negligent misrepresentation only differs from fraud in that it does not require knowledge of falsity. (*Tindell v. Murphy* (2018) 22 Cal.App.5th 1239, 1252.)

The demurrer to the seventh and eighth causes of action is **sustained**.

IV. Motion to Strike

The Court *may*, upon a motion to strike by defendant: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading, or (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., §§ 435-436.) The matter must appear on the face of the complaint, or from a matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437(a).) In ruling on motion to strike, courts do not read allegations in isolation, but rather as a whole, all parts in their context, assuming their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Defendant landlord moves to strike paragraphs 126, 127, 128, 129, and 130 of the SAC on the basis that they violate Code of Civil Procedure, § 425.10 (b), which states that “the amount demanded shall not be stated” in a complaint for personal injury or wrongful death.

Plaintiffs, in response, argue about punitive damages and whether the SAC contains sufficient facts to justify them. They mention only once, in a conclusory statement, that “the challenged prayer allegations are entirely proper.” The arguments are not on point and are irrelevant to whether a plaintiffs are statutorily prohibited from mentioning specific dollar amounts in the SAC’s prayer for relief. It appears such specific dollar amounts are improper.

Accordingly, the motion to strike is **granted** without leave to amend.

14. 9:00 AM CASE NUMBER: C25-00110

CASE NAME: MARLON ROBINSON VS. SAMMY MIZIRAWI

HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS 2ND AMENDED COMPLAINT

FILED BY: MIZIRAWI, SAMMY

TENTATIVE RULING:

Please see Line 13.

15. 9:00 AM CASE NUMBER: MSL21-01934
CASE NAME: LINDSEY CANNON VS. JUSTOURS, INC., A DELAWARE CORP.
HEARING ON SUMMARY MOTION -INTERVENOR, SCOTTSDALE INSURANCE COMPANY
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Intervenor Defendant Scottsdale Insurance Company's ("Scottsdale") Motion for Summary Judgment or in the alternative Adjudication ("MSJ"), or in the alternative summary adjudication to Plaintiffs' Second Amended Complaint ("SAC").

The MSJ/A attacks all three causes of action in the SAC: (1) First Cause of Action for PUBLIC INJUNCTION REGARDING UNLAWFUL, UNFAIR, AND PROHIBITED ACTS AND PRACTICES IN VIOLATION OF BUSINESS AND PROFESSIONS CODE SECTION 17200, et seq. AND §§ 17550, et seq.; (2) Second Cause of Action for CALIFORNIA CLASS ACTION FOR UNLAWFUL, UNFAIR, AND PROHIBITED ACTS AND PRACTICES IN VIOLATION OF BUSINESS AND PROFESSIONS CODE SECTION 17200, et seq. AND §§ 17550, et seq.; and (3) Third Cause of Action for CALIFORNIA AND NATIONWIDE CLASS ACTIONS FOR BREACH OF CONTRACTS.

For the following reasons, Defendant Scottsdale's MSJ is **denied**, Defendant Scottsdale's Motion for Summary Adjudication to Plaintiff's first cause of action for Public Injunction is **granted**.

Defendant Scottsdale Insurance Company's Request for Judicial Notice

Scottsdale requests that the Court take judicial notice of the documents listed below as Exhibits 14 through 18 because the following are official acts and records of the California Secretary of State. (Evid. Code §§ 452(c)-(d), (g).) Scottsdale cites Friends of Shingle Springs for the proposition that the Court took judicial notice of certificate of status issued by the Secretary of State, which reflected suspensions of corporation. (*Friends of Shingle Springs Interchange, Inc. v. County of El Dorado* (2011) 200 Cal.App.4th 1470, 1478 fn. 6.)

Scottsdale describes Exhibits 14 through 17 as Statement of Information and screenshots of the California Secretary of State website regarding the licenses of both JusTours and JusCollege. The **Court grants judicial notice of Exhibits 14 through 17.**

Plaintiffs objected to judicial notice of Exhibit 18. Scottsdale failed to describe Exhibit 18 in its papers and the **Court denies judicial notice of Exhibit 18.**

Exhibit 36 is a Notice to Court of Suspension of Corporate Status in this action filed on May 2, 2024, in this action. The Court under California Evidence Code, § 452(d), is authorized to take judicial notice of its own files and records. (*People v. Duran* (2002) 97 Cal.App.4th 1448, 1460 [judicial notice of official court records includes computer-generated records].) The **Court grants judicial notice of Exhibit 36.**

Plaintiffs' Request for Judicial Notice

Plaintiffs requests judicial notice of three of Defendant JusTours filings with the USPTO labeled as Exhibits 16 through 18.

The documents requested for judicial notice are official records created and maintained by the USPTO

in the course of its official duties administering the federal patent and trademark systems. These records are publicly accessible through the USPTO's official website and represent official acts of a United States executive agency. "Materials in the online files of the USPTO and other matters of public record are proper subjects of judicial notice." (*Threshold Enters. v. Pressed Juicery, Inc.* (N.D. Cal. 2020) 445 F.Supp.3d 139, 145; See also Evid. Code § 452(c).)

Plaintiffs' requests for judicial notice for **Exhibits 16 through 18 are granted.**

Factual Background

A. Facts Supporting Cannon's Causes of Action

On May 7, 2019, Cannon received an email from contact@juscollege.com to confirm that her Cabo trip was booked and it would cost \$999.00. The email lists a total of 7 payments totaling \$850.00. The email then includes the following information: Email: contact@juscollege.com Phone: 1-(855)-458-7225 JusTours, Inc., Auth. # 201806858, 1209 Orange St, Wilmington, 19801, Delaware." (emphasis added). On May 9, 2019, Cannon forwards this email to Susan Cannon stating "here's some of my info." (UMF 1.) On June 6, 2019, contact@juscollege.com emailed Cannon a receipt for her payment of \$90.00 on the same date and to advise of her that her next payment of \$150.00 is due on June 25, 2019. (UMF 2.)

On November 5, 2019, contact@m.juscollege.com emailed Cannon to advise her to get her passport ready for her Cabo trip. (UMF 3.) On November 21, 2019 contact@m.juscollege.com emailed Cannon to advise that hotel "room filling" is open and that she must fill her hotel room. (UMF 4.) On February 23, 2020, contact@m.juscollege.com emailed Cannon to provide her with information about her Cabo trip and events available through other companies during her trip. (UMF 5.) On February 28, 2020, contact@m.juscollege.com emailed Cannon to confirm her hotel accommodations for her Cabo trip at the Medano hotel with an arrival date of March 29, 2020. (UMF 6.)

On March 12, 2020, contact@m.juscollege.com emailed Cannon to acknowledge receipt of a number of questions from customers about Spring Break 2020, and to advise that her Juscollege believes that their destinations are among the "safest in the world." (UMF 7.) However, on March 16, 2020, contact@m.juscollege.com emailed Cannon to advise that her Cabo trip had to be cancelled due to the worldwide pandemic, and that Juscollege will be in contact with her about further details. (UMF 8.)

On Tuesday April 14, 2020, contact@m.juscollege.com emailed Cannon to advise that her Cabo trip had to be cancelled due to the worldwide pandemic and "to confirm we have been able to postpone your 2020 Cabo, Mexico Spring Break trip to 2021." Cannon was advised that she will be receiving 100% credit to cover the 'land' portion of next year's trip and 100% credit from the airline for the 'flight' portion of your trip this year. On April 28, 2020, contact@juscollege.com sent an email reminding her of the cancellation of the Cabo trip and her credits. (UMF 9.)

On May 15, 2020, contact@m.juscollege.com emailed lindseyc343@gmail.com to advise that she has a \$601.62 credit on Alaska Airlines. (UMF 10.) The email advises that Cannon must book a new flight by March 21, 2021, or she will lose the airline credits. The email also states that "we hope you and your families are staying safe during this worldwide pandemic, and we appreciate your patience." The email further advises that trips in 2020 are not feasible and that "[b]elow you will find your voucher to redeem the equivalent 2021 Land package for the trip you were due to experience in Cabo, Mexico staying at The Medano or a similar accommodation." The email further provides a list of five (5) additional trips from which Cannon can choose from. (Id.) On August 12, 2020, Cannon's counsel

(Steve Elster) wrote to Citores of “JusTours/Juscollege” to demand a refund of Cannon’s payments for her Cabo trip in the amount of \$899.00. (UMF 11.)

B. JusTours and JusCollege

In corporate filings with the California Secretary of State, JusTours filed its initial statement and designation with the California Secretary of State on August 29, 2019, and was located in Las Vegas, Nevada. (UMF 12, 37, 56 and 92.) JusTours’ license to practice business in California was forfeited on April 2, 2024. (UMF 13, 38, 57 and 93.) On May 2, 2024, JusTours filed a Notice to Court of Suspension of Corporate Status in this action. (UMF 14, 39, 58, and 94.)

Juscollege filed its initial statement and designation with the California Secretary of State on February 7, 2011, and was located in Menlo Park, California. (UMF 15, 40, 59, and 95.) Juscollege’s license to practice business in California was forfeited on July 25, 2018. (UMF 16, 41, 60, and 96.) JusCollege has an active website (<https://www.juscollege.com/terms-and-conditions>) which contains a “Terms and Conditions” page that states “CVJV, LLC dba JusCollege Terms of Service,” and that “[t]hese are the Services Terms for CVJV, LLC dba JusCollege (referred to as “we”, “us”, or “our”). We are a limited liability company formed under Delaware law. (UMF 17, 42, 61, and 97.)

C. JusTours’ Terms of Service

Cannon produced a Terms of Service Agreement (“Terms of Service”) that is undated, unsigned and does not include an http address. Nonetheless, assuming that Cannon agreed to such Terms of Service with JusTours, she released all claims. The terms “Supplier” in the Terms of Service includes, but is not limited to, suppliers of air, water, rail and ground transportation, hotels and other accommodations. The Cabo trip was cancelled by Alaska Airlines due to the government shut-down as a result of the Pandemic. (UMF 20, 64, and 100.) As such, even if booked through JusTours’ website, this “cancellation” is covered by the broad release in JusTours’ Terms of Service. Cannon received a \$601.00 flight credit from Alaska Airlines. (Id.)

D. Cannon’s Discovery Responses

During discovery in this action, Scottsdale served Cannon with interrogatories, and she admitted in her responses to those interrogatories that she contracted with “JusCollege”. (UMF 21, 65, and 101.) Specifically, Cannon states that, “[i]n approximately May 2019, Cannon contracted with JusCollege for air transportation and other travel services, including accommodations at a hotel in Cabo San Lucas, Mexico, scheduled for March and April 2020. Plaintiff paid Defendant in full via a series of payments totaling approximately \$900.00 between May 2019 and January 2020. JusCollege breached the contract by failing to provide the air transportation and travel services paid for. Furthermore, JusCollege breached the contract by failing to refund Cannon the money she paid after failing to provide the services, despite Plaintiff requesting a refund.” (Id.) Likewise, in Cannon’s responses to form interrogatories, she admits that she had a contract with JusCollege, and does not identify any contract with JusTours. (UMF 22, 66, and 102.)

In addition, Scottsdale served Cannon with requests for production of documents in which it specifically requested her contract with JusTours and all evidence supporting her claims against JusTours. (UMF 23, 67, and 103. However, consistent with her responses to special interrogatories, Cannon only produced evidence of a contract with JusCollege, not JusTours. (Id.)

E. Facts Supporting Bautista’s Causes of Action

On November 8, 2019, contact@juscollege.com emailed Bautista to confirm that her Cancun trip was

booked and (UMF 24, 68, 104.) On March 3, 2020, JusCollege (contact@m.juscollege.com) emailed Bautista to acknowledge receipt of a number of questions from customers about Spring Break 2020, and to advise that her Juscollege believes that their destinations are among the “safest in the world.” (UMF 25, 69, and 105.) On March 12, 2020, contact@m.juscollege.com emailed Bautista to acknowledge receipt of a number of questions from customers about Spring Break 2020, and to advise travel restrictions will not impact her trip. (UMF 26, 51, 69.) That same day, contact@m.juscollege.com emailed Bautista to acknowledge that some customers wanted to cancel their trips and that Juscollege was working on options. (UMF 27, 71, and 107.)

However, on March 16, 2020, contact@m.juscollege.com emailed Bautista to advise that her Cabo trip had to be cancelled due to the worldwide pandemic, and that Juscollege will be in contact with her about further details. (UMF 28, 72, and 108.) On March 31, 2020, contact@m.juscollege.com emailed Bautista to advise that her that Juscollege will be in contact with her about further details about a solution for her trip. (UMF 29, 73, 109.) On April 14, 2020, contact@m.juscollege.com emailed Bautista to advise that her that due to the cancellation of her trip, she will be receiving 100% flight and hotel credits for future travel. (UMF 30, 74, and 110.)

On December 22, 2020, JusCollege (contact@m.juscollege.com) emailed Bautista to advise that her of her travel credits and providing options for other trips she could choose from. (UMF 31.) On December 26, 2020, Bautista emailed JusCollege to request a refund. (UMF 32, 76, 112. On December 22, 2020, contact@m.juscollege.com emailed Bautista to advise that her that she would not be provided with refund but could use her travel credits to select a different trip. (UMF 33, 77, and 113.)

F. Bautista’s Discovery Responses

On April 24, 2026, Bautista served responses to Scottsdale’s discovery requests in which she admitted that that she contracted with “JusCollege”. (UMF 34, 78, and 114.) Specifically, Bautista states that, “[i]n approximately November 2019, Plaintiff contracted with JusCollege for air transportation and other travel services, including accommodations at a hotel in Cancun, Mexico, scheduled for March 2020. Plaintiff paid Defendant in full via a series of payments totaling approximately \$1,449.00 between November 2019 and January 2020. JusCollege breached the contract by failing to provide the air transportation and travel services paid for. Furthermore, JusCollege breached the contract by failing to refund Plaintiff the money she paid after failing to provide the services, despite Plaintiff requesting a refund.” (Id.)

Bautista also served responses to form interrogatories in which she confirmed she contracted with JusCollege for her Cancun trip. (UMF 35, 79, and 115.) In addition, Bautista produced evidence of a contract with JusCollege in the form of emails, but not JusTours. (UMF 36, 80, and 116.)

Legal Standard

A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. (CCP § 437c(a)(1).)

Section 437c(p)(1) provides, in relevant part:

A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the

cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.

In ruling on a summary judgment motion, the Court must “accept as true the facts . . . in the evidence of the party opposing summary judgment and the reasonable inferences that can be drawn from them” and “must view the evidence in the light most favorable to plaintiff as the losing party and liberally construe plaintiff's evidentiary submissions and strictly scrutinize defendant's own evidence, in order to resolve any evidentiary doubts or ambiguities in plaintiff's favor.” (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 254.)

Analysis

Breach of Written Contract

“A cause of action for breach of contract requires proof of the following elements: (1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach.” (*CDF Firefighters v. Maldonado* (2008) 158 Cal.App.4th 1226, 1239.)

JusTours and JusCollege

Scottsdale argues that Plaintiffs did not have a contract with JusTours, and therefore, JusTours could not and did not breach a contract, or cause Plaintiff's alleged damages. The documentary evidence Plaintiffs produced to establish their claims demonstrate that they booked their travel with JusCollege, not JusTours. The emails confirming Plaintiffs' flight credits after the Cabo trip was cancelled due to the Pandemic were also with JusCollege. The only connection between Plaintiffs and JusTours is Cannon's production of JusTours' Terms and Conditions of Use from JusTours' website. However, this is insufficient to establish a contract between Plaintiffs and JusTours.

Plaintiffs first rebuttal is that JusCollege, Inc. was not even licensed to practice business in California when Plaintiffs contracted for travel services. [AUMF 16] Scottsdale itself recognizes that the lack of a business license leaves a company “unable to conduct business in the State of California.” [MSJ 20:25]

Plaintiffs second rebuttal is that the written discovery responses they received referred to Defendant JusTours as JusTours, Inc., dba JusCollege as “JusCollege,” they were referring to the entity JusTours, Inc. dba JusCollege. (AUMF 14.) “JusCollege” does not exist as a separate legal entity. “The designation of ‘DBA’ or ‘doing business as’ simply indicates [a corporation] operates under a fictitious business name. Use of a fictitious business name does not create a separate legal entity. ... [T]he designation DBA means ‘doing business as’ but is merely descriptive of the person or corporation who does business under some other name.” (*Pinkerton's, Inc. v. Superior Court* (1996) 49 Cal.App.4th 1342, 1348.) “[T]here is no legal distinction between [a corporation] and its fictitious business name.” ((*Id.*) at 1347.)

Plaintiffs' present evidence that both JusTours and JusCollege is the same entity. Emails confirmed the details of Plaintiffs' trip came from the email that JusTours, Inc. identified in its Terms as its email (contact@juscollege.com). (AUMF 1.) JusTours, Inc. identified its website at www.juscollege.com, both in its Terms and to the USPTO. (AUMF 2-3.) Emails confirming the details of Plaintiffs' trips either identify the sender as JusTours, Inc. or identify the sender's location as that of JusTours, Inc. at 2470 Paseo Verde Parkway, Henderson, Nevada. (AUMF 4- 6.)

Plaintiffs' have established dispute of material facts whether they contracted with Defendant JusTours.

Waiver in JusTours' Terms of Service

It cannot be disputed that the Pandemic and resulting travel restrictions were "arising out of things out of JusTours control." It is well settled that, a written release extinguishes any obligation covered by the release's terms, provided it has not been obtained by fraud, deception, misrepresentation, duress, or undue influence. (*Skrbina v. Fleming Companies* (1996) 45 Cal.App.4th 1353, 1366.) "Release, indemnity and similar exculpatory provisions are binding on the signatories and enforceable so long as they are clear, explicit and comprehensible in each of their essential details. Such an agreement, read as a whole, must clearly notify the prospective releasor or indemnitor of the effect of signing the agreement." (*Powers v. Superior Court* (1987) 196 Cal.App.3d 318, 320.) "To be effective, a release need not achieve perfection; only on Draftsman's Olympus is it feasible to combine the elegance of a trust indenture with the brevity of a stop sign." (*National & Internat. Brotherhood of Street Racers, Inc. v. Superior Court* (1989) 215 Cal.App.3d 934, 938.)

Scottsdale contends that Plaintiffs "cancellation" of their trips is covered by the broad release in Justours' Terms of Service. The release broadly states that, "You hereby release JusTours of all claims arising out of things out of JusTours control." (UMF 21-24.)

Browse Wrap

Plaintiffs argue the Court has already decided in the Ruling on the Motion to Compel Arbitration that that all the provisions in the Terms, including any purported waivers or releases are "unenforceable because of the lack of assent or agreement by plaintiff to it." (AUMF 20.)

Scottsdale in their Reply takes that position that Plaintiffs' argument is inapplicable because the current motion does not address any Arbitration Agreement and the Terms of Service was emailed to them after the transaction took place. (Reply at p. 5: 3-19.) This argument contradicts the Court's analysis in its Ruling on the Motion to Compel Arbitration.

The Court held that the browse wrap agreement is unenforceable because the lack of assent or agreement by Plaintiff. (AUMF 20 at p. 2.) Lack of assent is not a defense specifically for Arbitration Agreements but a general contract defense that applies to the breach of contract cause of action here.

Civil Code section 3513

Civil Code section 3513 states, "Any one may waive the advantage of a law intended solely for their benefit. But a law established for a public reason cannot be contravened by a private agreement."

Plaintiffs point out that, "The seller of travel has an obligation either to provide the air or sea transportation or travel services purchased by the passenger or to make a refund as provided by this section." (Bus. & Prof. Code, § 17500.14(a).)

JusTours' browse wrap Terms which precludes consumer refunds of travel, directly contradicts the express statutory requirements of Business and Professions Code section 17550.14 which mandates that a seller refund purchased travel services not provided. A "law established for a public reason cannot be contravened by a private agreement." (*McGill v. Citibank* (2017) 2 Cal.5th 945, 964; quoting Civ. Code § 3513.)

JusTours' waiver agreement is not enforceable because it violates of Civil Code section 3513.

Violation of Business and Professions Code § 17200 and § 17550

Contract with JusTours

Scottsdale contends that since the only alleged wrongful business practice by Justours identified by Plaintiffs is the alleged breach of contract by Justours, but Justours did not have a contract with Plaintiffs and therefore, did not breach a contract with Plaintiffs. (MSJ at p. 18: 14-16.)

As explained above, Plaintiffs have shown dispute of material facts whether they contracted with Defendant JusTours.

Adequate Legal Remedies Do Not Preclude Business and Professions Codes Cause of Action

Scottsdale argues that Plaintiffs' UCL and section 17550 claims fail because Plaintiffs have an adequate remedy at law "in the form of a cause of action for breach of contract." (MSJ 19:3-5.) That is not the rule governing California's statutory unfair competition remedies.

The UCL defines unfair competition broadly to include "any unlawful, unfair or fraudulent business act or practice." (Bus. & Prof. Code § 17200.) "Unless otherwise expressly provided, the remedies or penalties provided by this chapter are cumulative to each other and to the remedies or penalties available under all other laws of this state." (Bus. & Prof. Code § 17205; see also *Cortez v. Purolator Air Filtration Products Co.* (2000) 23 Cal.4th 163, 179.)

Injunctive Relief Under Business and Professions Codes are Not Moot

Business and Professions Code section 17200 is a remedial statute that is not limited to future-facing injunctions; it authorizes courts to enjoin unfair competition and to make orders necessary "to restore to any person in interest any money or property" acquired by means of unfair competition. (Bus. & Prof. Code § 17203.) Section 17204 likewise permits a private UCL action by a person who "has suffered injury in fact and has lost money or property as a result of the unfair competition." (Bus. & Prof. Code § 17204.) Thus, even if a defendant could narrow or defeat one form of prospective injunctive relief, that would not dispose of a UCL claim supported by evidence of lost money or property because of violations of unfair competition or the Sellers of Travel law. (Bus. & Prof. Code § 17550.14.)

Plaintiffs do not dispute the narrow equitable principle that an injunction should not be issued as punishment for past conduct alone. But Scottsdale seeks a broader ruling: elimination of the entire Business and Professions Code claim. Scottsdale's argument does not establish that all claims under Business and Professions Code section 17200 and 17550 are moot.

Public Injunction

Plaintiffs' first cause of action for public injunction is duplicative of the second cause of action because a public injunction is a possible remedy of the second cause of action for violation of Business and Professions Code § 17200 and § 17550 and Plaintiffs admit it in their opposition. (Opposition at p. 14: 4-5.) Summary adjudication is granted for this cause of action.

Conclusion

For the reasons stated above, Defendant Scottsdale's MSJ is denied, Defendant Scottsdale's Motion for Summary Adjudication to Plaintiff's first cause of action for Public Injunction is granted.

Evidentiary Objections

The Court need only rule on those objections to evidence that are material to the disposition of the

MSJ. (See CCP § 437c(q).)

Scottsdale's Objections

OBJ 3: Elster Decl. ¶ 8 and Exhibits 16 to 18. **Overruled.** See Plaintiff's RJN.

16. 9:00 AM CASE NUMBER: MSL21-01934

CASE NAME: LINDSEY CANNON VS. JUSTOURS, INC., A DELAWARE CORP.

HEARING ON MOTION IN RE: CONTINUE TRIAL AND FOR TOLLING OF 5-YEAR STATUTE

FILED BY: CANNON, LINDSEY

TENTATIVE RULING:

Introduction

Before the Court is , Plaintiffs Lindsey Cannon and Janine Bautista ("Plaintiffs")'s Motion to Continue Trial and Toll the Five-Year Rule under Code of Civil Procedure section 583.310. The motion is opposed by Defendant Intervenor Scottsdale Insurance Company.

For the following reasons, Plaintiffs' Motion to Continue Trial and Toll the Five-Year Rule are **granted**. Parties are ordered to appear to discuss a new trial date.

Factual Background

This action arises from a contract dispute between Lindsey Cannon ("Cannon" or "Plaintiff") and Janine Bautista ("Bautista" or Plaintiff) ("Cannon" and "Bautista" are collectively referred to as "Plaintiffs") and Defendant "JusTours, Inc., a Delaware Corp. dba JusCollege" ("Justours" or "Defendant"). Cannon commenced this action on September 3, 2021. Cannon alleges that from May, 2019 to January, 2020, she paid \$900 to JusTours for air transportation and hotel accommodations in Cabo San Lucas, Mexico ("Cabo trip"). Cannon further alleges that JusTours failed to provide the air transportation and other travel services for which Cannon paid JusTours. Cannon contends that she requested a refund from JusTours on or about August 12, 2020, but JusTours failed to provide her with a refund.

Procedural History

Complaint

In her initial complaint, Cannon sought a public injunction pursuant to California Business and Professions Code § 17200, et seq: (a) Defendant from committing future violations of Business & Professions Code § 17550; (b) requiring Defendant to comply with Business & Professions Code § 17550.14; and (c) establishing an effective monitoring mechanism to ensure Defendant's compliance with the injunction. (See, Docket Entry on 9/3/21.)

First Amended Complaint

On May 4, 2023, Cannon filed a First Amended Complaint ("FAC"), alleging causes of action for (1) public injunction regarding unlawful, unfair and prohibited acts and practices in violation of Business and Professions Code § 17200 et. seq. and 17550 et. seq.; (2) California class action for unlawful, unfair and prohibited acts and practices in violation of Business and Professions Code § 17200 et. seq. and 17550 et. seq.; and (3) California and nationwide class action for breach of contract. (See, Docket

Entry 5/4/23.)

Motion to Compel Arbitration

On November 19, 2021, JusTours filed a Motion to Compel Arbitration, which was denied on September 14, 2022. (Motion to Compel Arbitration dated November 19, 2021; Order re Motion to Compel Arbitration dated September 14, 2022.)

Intervention of Scottsdale Insurance

On May 2, 2024, JusTours filed a Notice to Court of Suspension of Corporate Status. Thus, JusTours was no longer able to defend itself in this action. JusTours is purportedly an insured of Scottsdale in connection with the claims arising in this case and therefore, Scottsdale intervened in this action on behalf of JusTours on August 19, 2024. (Order re Motion for Leave to Intervene dated August 19, 2024.)

Second Amended Complaint

On April 16, 2026 (over four and a half years after filing the original complaint), Cannon filed a Second Amended Complaint (“SAC”), which added Bautista as a co-class representative. (See, Docket Entry 4/16/26.) Bautista alleges that in approximately November 2019, she contracted with JusTours for JusTours to provide Bautista with air transportation in conjunction with other travel services. The air transportation was for both Plaintiffs’ travel between California and Mexico in March and April 2020. The travel services included a hotel in Cancun, Mexico (“Cancun trip”) for Bautista. Bautista paid JusTours approximately \$1,450.

Scottsdale has served written discovery upon Plaintiff and filed a motion for summary judgment scheduled to be heard on July 15, 2026. The trial in this matter is set for August 17, 2026, shortly before the five-year statute runs in this case.

Plaintiffs argue that the five-year limit should be tolled by “at least 946 days” because bringing the action to trial was “impossible, impracticable, or futile.” (Motion, 1:13-24.)

Legal Standard

A plaintiff must bring an action to trial within five years of initiating the complaint. (Code Civ. Proc., § 583.310.) This serves to “promote the trial of cases before evidence is lost, destroyed, or the memory of witnesses becomes dimmed ... [and to] protect defendants from being subjected to the annoyance of an unmeritorious action remaining undecided for an indefinite period of time.” (*General Motors Corp. v. Superior Court of Los Angeles County* (1966) 65 Cal.2d 88, 91.) “If an action is not brought to trial within this time, the trial court must dismiss the action either on its own motion or on motion of the defendant.” (*Barron v. Santa Clara County Valley Transp. Authority* (2023) 97 Cal.App.5th 1115, 1122 citing § 583.360, subd. (a).) “Dismissal is mandatory and not subject to ‘extension, excuse, or exception except as expressly provided by statute.’” (*Ibid.* quoting § 583.360 (b).) A plaintiff must exercise “reasonable diligence” in bringing a lawsuit to trial in a timely manner. (*Hocharian v. Superior Court* (1981) 28 Cal.3d 714, 721.)

The five-year period starts upon the filing of the initial complaint. (*Brumley v. FDCC California, Inc.* (2007) 156 Cal.App.4th 312, 318.) Considering the COVID-19 pandemic’s widespread impact on

the courts, the Judicial Council of California adopted an emergency rule that granted an extension by six months of the five years allotted to bring all civil actions to trial, applicable to those actions brought on or before April 6, 2020. (Cal Rules of Court, Appx., Emergency Rule 10 (a), *Ables v. A. Ghazale Brothers, Inc.* (2022) 74 Cal.App.5th 823, 827.)

When calculating the requisite five-year period, time is excluded during which the Court's jurisdiction was suspended, a stay or injunction was in place, or the plaintiff's ability to bring the action to trial is "impossible, impracticable, or futile." (Code Civ. Proc., § 583.340 (c).) "Determining whether the subdivision (c) exception applies requires a fact-sensitive inquiry and depends 'on the obstacles faced by the plaintiff in prosecuting the action and the plaintiff's exercise of reasonable diligence in overcoming those obstacles.' [Citation.]" (*Alpha Media Resort Investment Cases* (2019) 39 Cal.App.5th 1121, 1128.)

"The trial court is in the most advantageous position to evaluate [the] diverse factual matters" relating to the impracticability of bringing a case to trial. (*Brunzell Constr. Co. v. Wagner* (1970) 2 Cal.3d 545, 555.) "The plaintiff bears the burden of proving that the circumstances warrant application" of the exception. (*Bruns v. E-Commerce Exchange, Inc.* (2011) 51 Cal.4th 717, 731.)

The five-year calendar for prosecution of a civil action under section 583 is meant to "afford fair opportunity to bring a cause to trial, even though a part of the five-year period must necessarily be consumed in service of process, disposition of demurrers, amendment of pleadings, if necessary, usual and reasonable time consumed in waiting for a place on the court's calendar or in securing the attendance of a jury and suchlike usual and necessary proceedings...." (*Continental Pacific Lines v. Superior Court of Solano County* (1956) 142 Cal.App.2d 744, 750.)

Analysis

Tolling for Motion to Compel

Preston v. Kaiser Found. Hosps. establishes a bright-line rule—"the point for commencing the running of the time will not ordinarily be the filing of the complaint, but rather the order for arbitration. During the period between the filing of the complaint and the order for arbitration, it would generally not be possible or practical for the plaintiff to bring the matter to arbitration or trial." (*Preston v. Kaiser Foundation Hospitals* (1981) 126 Cal.App.3d 402, 408-09 [statutorily overruled on a separate issue by an amendment to Code Civ. Proc. § 581(f) in 1982].) This triggers the tolling exception set forth in CCP section 583.340(c). *Preston* further held that "the plaintiff should not be penalized for requiring the defendant to obtain a court order for arbitration nor should the plaintiff be penalized for any delay attributable to the defendant in obtaining an order for arbitration." (Id. at 410.)

Boutwell cited *Preston* for the proposition that "[c]ourts have applied this [tolling] exception to orders directing arbitration since between the filing of the complaint and the order for arbitration, it would generally not be possible or practical for the plaintiff to bring the matter to arbitration or trial. The limitations period, therefore, would ordinarily begin on the date of the order for arbitration, not the date plaintiff filed the complaint." (*Boutwell v. Kaiser Found. Health Plan* (1988) 206 Cal.App.3d 1371, 1374.) *Boutwell* stands for the same tolling principle as *Preston*: the period between the filing of a complaint and the resolution of a motion to compel arbitration is excluded from the five-year period under CCP section 583.340(c).

Scottsdale asserts that “Plaintiffs’ failure to litigate the case while waiting for Justours’ Motion to Compel Arbitration is Plaintiffs’ own fault.” (Opposition at p. 5:1-2.) This bare assertion is unsupported by any legal authority.

When a defendant files a motion to compel arbitration, the plaintiff has no choice but to respond to that motion and await the court’s ruling. A plaintiff cannot unilaterally proceed to trial while the motion is pending; doing so would violate the court’s authority to determine threshold issues of arbitrability. The moving party—here, Defendant—invoked the court’s jurisdiction to resolve a disputed legal question, and the resulting delay is attributable to the procedural mechanism itself, not to any lack of diligence by the plaintiff. The Opposition’s citation to *Hofer v. Boladian* proves Plaintiffs’ point. *Hofer*’s holding of a defendant’s waiver of the right to arbitrate through inconsistent litigation conduct demonstrates the futility of a plaintiff trying to seek discovery while a defendant’s motion to compel arbitration is pending. A defendant in such circumstances would risk waiving its right to arbitrate by responding to discovery while its arbitration motion was pending. A plaintiff who seeks discovery during the pendency of an arbitration motion would only burden the court with extraneous discovery-related motions.

Plaintiffs request a 299-day tolling of the five-year statute from the filing of the Motion to Compel Arbitration on November 19, 2021, to the denial of the motion on September 14, 2022. The Court grants the 299-day tolling of the five-year statute.

Tolling for Dissolution of JusTours

The complete disappearance of a defendant is not “part of the normal delays involved in prosecuting lawsuits” that do not toll the five-year rule. (*Martinez v. Landry’s Restaurants, Inc.* (2018) 26 Cal.App.5th 783, 796.) The obstacle here was not ordinary delay—it was the disappearance of the only defendant then defending the case. *Warner Bros. Entertainment Inc. v. Superior Court* found that the five-year rule was tolled during the 32-day period after the original plaintiff’s death because “it was impossible and impractical for plaintiff to pursue the action without a client, without a plaintiff in this case.” (Id. (2018) 29 Cal.App.5th 243, 267.) *Pham v. Wagner Litho. Mach. Co.* found that under the precursor to CCP 583.340, the five-year rule was tolled during “the period of time between plaintiff’s death and [the probate administrator’s] substitution as plaintiff.” (Id. (1985) 172 Cal.App.3d 966, 969; FN 3 (noting the relevant code section is now CCP § 583.340).) “The courts of this state have established decisionally certain implied exceptions where it would be impossible, impracticable or futile due to causes beyond a party’s control to bring an action to trial during the five-year period.” (Id. at 972.)

Scottsdale argues that *Warner Bros.* and *Pham* are “distinguishable” because both involved the death of a natural person rather than a corporate defendant. (Opposition at p. 5: 15-24.) This misses the point. The tolling principle in both cases is not tied to the legal status of the disappeared party but to the functional impossibility of prosecuting an action without a party to litigate against. *Pham* held that “plaintiff’s death here left no person or entity to prosecute the underlying action on her behalf,” and therefore “[i]t was during this period of temporary impracticability and futility that [the precursor to CCP § 583.340] operated to toll the five-year statute.” (*Pham*, 172 Cal.App.3d at 972-973.) The *Pham* court did not condition tolling on the biological nature of the disappeared party— it conditioned

tolling on whether the party's absence rendered prosecution "impracticable" or "futile."

Here, Defendant's disappearance created the identical obstacle. Defendant ceased functioning, disappeared from the litigation, failed to participate in discovery, and left no meaningful adversary until Scottsdale intervened. (Motion at pp. 3: 8- 5: 7.) Defense counsel stated there appeared to be "no company left" to provide substantive responses. (Motion at p. 5: 8-11.) Scottsdale itself acknowledged that Defendant was "no longer able to defend itself" and that attempts to contact Defendant had been unsuccessful. (Motion at p. 4: 11-15.)

Scottsdale's Opposition concedes the governing tolling principle: it characterizes both authorities cited by Plaintiffs as cases where tolling applied because the plaintiff died. (Opposition at p. 5:21-24.) A defendant that has ceased to exist, cannot be contacted, produces no discovery, and provides no witnesses is functionally indistinguishable from a deceased plaintiff. This renders the action impracticable to prosecute. The point is not whether a party is a natural person, but that litigation becomes impracticable when a necessary party disappears so completely that the action cannot meaningfully proceed against or through that party. Because CCP section 583.340(c) is designed to exclude periods when trial could not practicably be reached, and because California policy favors merits adjudication over dismissal for lack of prosecution, the period during which Defendant disappeared and no functioning adversary existed should be tolled. (Code Civ. Proc. §§ 583.130, 583.340(c).)

Plaintiffs request a 647-day tolling of the five-year statute from the filing of the Withdrawal of Defense Counsel on November 11, 2022, to the Intervention of Scottsdale Insurance on August 19, 2024. The Court grants the 647-day tolling of the five-year statute.

Plaintiffs Have Shown Reasonable Diligence in Prosecuting This Case

It is the Plaintiff's burden to prove the circumstances justify application of the exception under section 583.340 to the five-year rule. (*Bruns v. E-Commerce Exchange, Inc.* (2011) 51 Cal.4th 717, 731.) "What is impossible, impracticable or futile must be determined in light of all the circumstances in the individual case, including the acts and conduct of the parties and the nature of the proceedings themselves." (*Moran v. Superior Court* (1983) 35 Cal.3d 229, 238.) "The 'reasonable diligence' standard is an appropriate guideline for evaluating whether it was impossible, impracticable, or futile for the plaintiff to comply with section 583(b) *due to causes beyond his or her control.*" (Id.)

"[P]utative class member contact information is essential to a plaintiff's motion for class certification." (*Martinez*, 26 Cal.App.5th 783, 799.) In "non-PAGA class actions, the contact information of those a plaintiff purports to represent is routinely discoverable as an essential prerequisite to effectively seeking group relief." (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 538.)

Plaintiffs posit that but for Defendant's disappearance, Plaintiffs would have obtained class lists and all evidence through ordinary discovery procedures. Without this information, Plaintiffs could not proceed with their class action. Only due to Plaintiffs' diligence and persistence, they independently located the necessary class contact information—a process that required one and a half years of effort. Defendant, and by extension, its insurer Scottsdale, should not benefit from the very obstacle Defendant created by disappearing. Plaintiffs' efforts after Defendant disappeared, included Plaintiffs:

- Serving deposition subpoenas on Alaska Airlines, discovering that Defendant's co-founder Andrew

Citores had purchased Plaintiff Cannon's airfare with his personal credit card;

- Serving deposition subpoenas on Victory Travel, Inc., the vendor from which Defendant purchased air travel for other class members;
- Serving a deposition subpoena on Robert Thede, Defendant's other co-founder;
- Filing separate lawsuits against Citores and Thede, leading to the production of Excel spreadsheets containing names, emails, and payment information for tens of thousands of Defendant's customers—the class list; and
- Conducting mass email outreach to a subset of class members, hundreds of whom responded within a few weeks. (Motion at p. 7: 1-22.)

Good Cause Exits for a Trial Continuance

The California Rules of Court Rule 3.1332 provides multiple grounds to continue a trial date including "a party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or [a] significant, unanticipated change in the status of the case as a result of which the case is not ready for trial. (Cal. Rules of Court, rule 3.1332(c).)

Excused Inability to Obtain Essential Material Evidence

Plaintiffs contend their document requests and deposition notice to Defendant's corporate witness were followed by defense counsel's admission that they "cannot serve substantive and verified responses for an entity that seemingly no longer exists." (Motion at p. 6: 9-22.) Plaintiffs exercised diligence by pursuing third-party discovery, subpoenaing Defendant's co-founders, filing separate lawsuits, and ultimately obtaining class-member data through creative litigation tactics. (Motion at p. 7: 1-22.)

Significant Unanticipated Change in the Status of the Case

Plaintiffs contend that the June 10, 2026, ruling denying class certification constitutes a significant and unanticipated change in the status of the case within the meaning of Rule 3.1332(c)(7). Plaintiffs pursued class certification and sought expedited hearing dates through two ex-parte applications to comply with the existing trial schedule. The Court denied certification solely based on the timeliness of the motion. (See 06/10/2026 Minute Order for the Class Certification Hearing.) That ruling fundamentally altered the posture of the litigation. Plaintiffs take the position that they do not seek a continuance because they failed to prepare the case; rather, they seek a continuance because the current trial date has become incompatible with the orderly adjudication of the class certification.

Other Factors to be Considered

Plaintiffs contend that although the August 17, 2026, trial date is approaching, Plaintiffs brought this motion promptly after the Court's June 10 ruling revealed the necessity of a continuance. There has been no prior continuance of the trial date requested by Plaintiffs. Plaintiffs seek only the amount of additional time necessary to permit class certification proceedings and trial preparation to be completed in a manner consistent with due process and the Court's scheduling requirements. Conversely, denial of a continuance would substantially prejudice Plaintiffs and the absent class members by preventing adjudication of meritorious class claims.

Defendant Scottsdale argues that a continuance would prejudice Scottsdale who has been diligently litigating this case, that interests of justice would best be served by letting trial proceed as scheduled, no other factor is relevant to the fair determination of the motion, and Plaintiffs failed to provide an adequate showing of good cause to continue the trial. (Opposition at p. 4: 6-10.)

Trial Continuance Duration

The Court agrees with Defendant Scottsdale that a trial continuance of 946 (over two and a half years), is unreasonable. However, Plaintiffs did not propose any new dates for a new trial date in their papers.

The Court orders the parties to appear to discuss new trial dates at the hearing.

Conclusion

For the reasons analyzed above, Plaintiffs' Motion to Continue Trial and Toll the Five-Year Rule are granted. Parties are ordered to appear to discuss a new trial date. The Parties are ordered to appear via Zoom for a Trial Setting Conference. The Trial calendared for August 17, 2026 is **vacated**. The Issue conference scheduled for July 17, 2026 at 8:30 a.m. is **vacated**. The Parties are ordered to notify the settlement mentor.

17. 9:00 AM CASE NUMBER: N26-0360
CASE NAME: CLAIM OF:ASSER ABDELMATIASSER ABDELMATI
HEARING ON MINOR'S COMPROMISE

FILED BY:

TENTATIVE RULING:

Summary

Petitioner Ahmed Abdelmatti's ("Petitioner") Petition for Approval of Compromise of Minor Asser Abdelmatti (DOB 6/5/2011) ("Minor") Claim is **granted**, as set forth below. No appearance is required at the hearing on July 15, 2026, provided Petitioner complies with the Court's order below.

Background

On February 27, 2026 Petitioner, parent and guardian ad litem for her child, Minor filed the Petition to compromise the claim that Minor had against Kristin Howes (insured) related to an accident that occurred on September 30, 2024 in Brentwood, California in Contra Costa County. In that accident, Minor sustained injuries his right leg when insured struck him while he was on a scooter. Petitioner represents that Minor has received treatment at urgent care. He has fully recovered and there are no permanent injuries.

The Defendant's insured offered settlement in the amount of \$10,000, of which \$9,750.14 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deduction of \$249.86 represents a negotiated deduction from the settlement, which is used to satisfy the liens for medical expenses. Petitioner represents herself in propria persona and no attorneys have been incurred. The Court notes that the carrier's attorney has assisted Petitioner in preparing the Petition and accompanying papers. Petitioner prepared a proposed order to deposit funds into a blocked account

for the benefit of Minor.

Analyses

A Petition for Minor's Compromise is a mandatory legal procedure in California required to settle any legal claim or lawsuit belonging to a minor child. Under state law, minors lack the legal capacity to sign binding contracts or settlement releases, meaning court approval is required to finalize the settlement and secure the proceeds.

California Probate Code §§ 3500–3613 provides the primary framework for the procedure and disposition of settlement funds. Probate Code Section 3500 grants a parent or guardian the authority to compromise a minor's claim before a lawsuit is filed. Probate Code Sections 3600–3613 regulate how the court must distribute and protect the settlement proceeds. If applicable, California Code of Civil Procedure (CCP) §§ 372–376 governs minors who are already active parties in a pending civil lawsuit. CCP § 372 mandates that a minor must appear via a Guardian Ad Litem (GAL) or a guardian of the estate to execute a compromise.

Lastly, California Rules of Court (CRC), Rules 7.950–7.955: Outlines specific pleading rules, disclosure mandates, attorney fee structures, and the protocols for placing funds into blocked bank account. This Court is required to review the Petition for Approval of Compromise of Claim or Action

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition.

Ruling

1. The Petition is **granted**. The Court will execute the (a) Proposed Order Approving Compromise of Minor's Claim and the (b) Proposed Order to Deposit Funds into a Blocked Account lodged on February 27, 2026.
2. The Court orders Petitioner to secure the Bank's signature on **Form MC-356** (*Receipt and Acknowledgment of Order for the Deposit of Money into a Blocked Account*). Petitioner must file this signed receipt back with the court within thirty (30) days to prove the money is safely deposited in a blocked account.

18. 9:01 AM CASE NUMBER: C25-00985

CASE NAME: CHASE MOUTON VS. HUAN LI

HEARING ON MOTION FOR DISCOVERY COMPEL PLTF CHASE MOUTON FURTHER RESPONSE TO FORM INTERROGATORY

FILED BY: LI, HUAN

TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 18, 19, 20, which are discovery motions pending before the Court. The following motions are on calendar for July 15, 2026 at 9:00 a.m.:

1. Defendants Huan Li and Xiaosong Wong ("Defendants") Motion to Compel Plaintiff Chase Mouton's ("Chase") Further Response to Form Interrogatories Nos. 2.12, 2.13 and 12.1, and for sanctions in the amount of \$2,400 filed on February 23, 2026.
2. Defendants Motion to Compel Further Response to Plaintiff Catherine Mouton's ("Catherine") Form Interrogatories Nos. 2.12, 2.13 and 12.1, and for sanctions in the amount of \$2,400 filed on February 23, 2026; and
3. Defendants Motion to Compel Plaintiff Chase Mouton's Further Response to Request for Production of Documents, Nos. 1-5

The Court also advances, *sua sponte*, the following Motion calendared for July 22, 2026 to be heard on July 15, 2026 at 9:00 a.m.

4. Defendants Motion to Compel Catherine's Further Responses to Request for Production of Documents, Nos. 1-5.

The rulings on each of these motions are set forth below.

Background

In their 127 page complaint filed on April 8, 2026, Plaintiffs Chase Mouton, Catherine Mouton, and their minor child (collectively "Plaintiffs") leased residential property located at 2674 Torrey Pines Drive, Brentwood, California from Defendants Huan Li and Xiaosong Wang ("Defendants"). The parties entered into a lease agreement dated August 28, 2024, with a term extending through May 27, 2026, at a monthly rent of \$4,200. Plaintiffs allege they paid a security deposit of \$8,400, which they contend exceeds the one-month limit established by California Assembly Bill 12. Plaintiffs assert that throughout the tenancy, the Property suffered from substantial habitability defects rendering it unfit for human occupancy. These alleged conditions include: lack of insulation and ducting in the attic; rodent infestation, including rat feces in the attic; water and irrigation leaks; and excessively high electricity bills attributable to the lack of insulation. Plaintiffs contend these conditions violate California Civil Code sections 1941.1 and 1942, as well as Health and Safety Code section 17920.3 governing substandard buildings.

According to the Complaint, Plaintiffs notified Defendants of these defective conditions and requested repairs, but Defendants either failed to remediate the issues entirely or performed

inadequate repairs that left the habitability violations unaddressed. Plaintiffs allege Defendants had adequate notice and opportunity to correct these conditions prior to the filing of this action but failed to do so.

The Complaint asserts five causes of action against Defendants: (1) breach of the implied warranty of habitability; (2) contractual breach of the warranty of habitability; (3) breach of the covenant of quiet enjoyment under Civil Code section 1927; (4) private nuisance under Civil Code sections 3479, 3481, and 3501; and (5) negligence. Plaintiffs allege Defendants breached their statutory and common law duties to maintain the premises in a habitable condition and to refrain from interfering with Plaintiffs' use and enjoyment of the Property.

Plaintiffs seek damages for emotional distress, discomfort and annoyance, nuisance, overpayment of rent, and excessive utility costs allegedly caused by the defective conditions. They also seek statutory interest, costs of suit, and other relief as the Court may deem appropriate. Plaintiffs have demanded a jury trial.

Defendants served Form Interrogatories and Requests for Production of Documents to Plaintiffs, which are the subject of these motions. Defendants claim that the responses provided by Plaintiffs are insufficient and require further responses.

Analysis

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel should be considered a last resort when trying to prepare a case for trial." California Civil Discovery Practice (4th ed., CEB) § 15.32[C].

Additionally, "trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes." California Civil Discovery Practice (4th ed., CEB) § 15.38.6.

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Interrogatories

The grounds set forth in Cal. Code of Civ. Proc. § 2030.300(a)(1)-(3) compel further answers to interrogatories where the answers are "incomplete or evasive," or an "objection to an interrogatory is without merit or too general." When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Production or Inspection of Documents

Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1). When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

If a responding party does not have documents response to a request, it must specifically, adequately and completely state a response that includes: (1) An affirmation that a diligent search and reasonable inquiry have been made in an effort to comply with the demand; (2) A statement that it has an inability to comply because the item or category has never existed, has been destroyed, is lost, misplaced, stolen or is not in the possession, custody or control of the responding party; and (3) the name and address of the person or organization known or believe to have possession, custody or control of the item or category of the item. (Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. Absent these representations, a response is defective.

Objections and Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, "without substantial justification, an unmeritorious objection to discovery, " to make "an evasive response to discovery" and to make or oppose "unsuccessfully without substantial justification a motion to

compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally.

CCP Section 2023.030(a) provides: “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or an attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.”

Boilerplate objections fail to satisfy the level of specificity mandated by statute, and the use of boilerplate objections may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also Cal. Code of Civ. Proc. §§ 2023.010(e),(f) and (h), and Cal. Code of Civ. Proc. §§ 2030.210, 2030.220 (b)(c).

It is wholly improper for a party to respond to discovery by making unmeritorious objections and then refusing to identify responsive documents and producing them. California’s Discovery act was “intended to take the ‘game’ element out of trial preparation,” considering that “a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise.” (*Greyhound Corp. v. Super. Court In and For Merced County* (1961) 56 Cal.2d 355).

Meet and Confer

The parties to a discovery dispute are required to meet and confer, a reasonable and good faith attempt, to informally resolve any dispute concerning discovery. See Cal. Code Civ. Proc. §§ 2016.040, See *Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (Frye) (2022) 84 Cal.App.5th 127, 138.

In addition to the statutory requirements that obligate counsel to meet and confer on a discovery motion, Contra Costa County Superior Court local rules require the same. See L.R. 2.121(e). Additionally, the Court’s local rules states that motions “should be filed sparingly, in good faith and when the issue(s) cannot be otherwise resolved.” L.R. 2.122(c). Cal. Code of Civ. Proc. § 2016.040 requires, at a minimum, **attorneys to talk in person, by telephone, or by video conference to work out issues, rather than just send written** correspondence with an invitation to “call me if you should have any further questions or comments,” which Courts have found to be insufficient. *Jovita Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 429, 431-433.

Here, the record presented to the Court demonstrates that Counsel met and conferred on the outstanding issues via e-mail, but are unable to resolve the discovery disputes before Plaintiff filed this third motion. The Court questions whether Counsel have strictly complied with Section 2016.040 which requires counsel to “talk in person, by telephone, or by video conference” rather than just send e-mails to each other. Counsel are admonished that any future discovery motions will be scrutinized to determine compliance with this mandatory provision of the code.

Ruling

1. The Court makes the following rulings on Defendant’s Motion to Compel Chase Mouton’s Further Response to Form Interrogatories Nos. 2.12, 2.13 and 12.1, and for sanctions in the amount of \$2,400 filed on February 23, 2026.

- The Motion to Compel is **denied**. Under California Rules of Court, rule 3.1345(a), a motion to compel further responses must also be accompanied by a separate statement containing the requests and the responses, **verbatim**, as well as **reasons why a further response is warranted. This must be complete in itself, and no extrinsic materials may be incorporated by reference.** Rule 3.1345(c.) A trial court is within its discretion to deny motion to compel discovery where a party has not filed a separate statement in conformity with these rules. (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893 (party's failure to ensure compliance of separate statement with California Rules of Court justified the trial court's denial of discovery motion). Here, Defendants' Counsel fails to comply with California Rule of Court Rule no. 3.1345(c), which states:

"A separate statement is a **separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response.** Material must not be incorporated into the separate statement by reference. The separate statement must include-for each discovery request (e.g., each interrogatory, request for admission, deposition question, or inspection demand) to which a further response, answer, or production is requested-the following:

- (1) The text of the request, interrogatory, question, or inspection demand;
 - (2) The text of each response, answer, or objection, and any further responses or answers;
 - (3) A statement of the factual and legal reasons for compelling further responses, answers, or production as to each matter in dispute;
 - (4) If necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it;
 - (5) If the response to a particular discovery request is dependent on the response given to another discovery request, or if the reasons a further response to a particular discovery request is deemed necessary are based on the response to some other discovery request, the other request and the response to it must be set forth; and
 - (6) If the pleadings, other documents in the file, or other items of discovery are relevant to the motion, the party relying on them must summarize each relevant document." [Emphasis added]
- Counsel's purported statement does strictly adhere to the requirements of Rule 3.1345(c) and refers to extrinsic correspondence and other documents, making it very difficult for the Court to review the pertinent issues in one document. Counsel is admonished to strictly adhere to Rule 3.1345 for all future discovery motions.
 - Defendant's request for sanctions are **denied**. Each party to pay their own attorney's fees and costs for prosecuting and/or defending against this motion.

2. The Court makes the following ruling on Defendants Motion to Compel Further Response to Catherine's Form Interrogatories Nos. 2.12, 2.13 and 12.1, and for sanctions in the amount of \$2,400 filed on February 23, 2026; and

- Interrogatory No. 2.12: **Granted**. Plaintiff's objections are **overruled**. Catherine is ordered to provide further responses this interrogatory, including each sub part.
- Interrogatory No. 2.13: **Granted**. Plaintiff's objections are **overruled**. Catherine is ordered to provide further responses this interrogatory, including each sub part.
- Interrogatory No. 12.1: **Granted**. Plaintiff's objections are overruled. Catherine is ordered to provide further responses this interrogatory, including each sub part. To the extent that Plaintiffs Catherine and Chases are the only individuals who witnessed the incident, made statements or have knowledge of the incident, no further responses are required.
- Further verified responses shall be provided no later than ten (10) days from the date of entry of this order.
- Defendant's request for sanctions are **denied**. Each party shall pay their own attorney's fees and costs for prosecuting and/or defending against this motion.

3. The Court makes the following ruling on Chase's Motion to Compel Plaintiff Chase Mouton's Further Response to Request for Production of Documents, Nos. 1-5

- Request No. 1, 2, 3,4,5: **Granted** in part. **Denied** in part. Plaintiff has identified the documents that are responsive and has agreed to produce these documents. If they have not already been produced, Chase is ordered to make the documents available for inspection, or copying no later than ten (10) days from the date of entry of this order.
- Defendant's request for sanctions are **denied**. Each party shall pay their own attorney's fees and costs for prosecuting and/or defending against this motion.

4. Defendants Motion to Compel Catherine's Further Responses to Request for Production of Documents, Nos. 1-5.

- Request No. 1, 2, 3,4,5: **Granted** in part. **Denied** in part. Plaintiff has identified the documents that are responsive and has agreed to produce these documents. If they have not already been produced, Chase is ordered to make the documents available for inspection, or copying no later than ten (10) days from the date of entry of this order.
- Defendant's request for sanctions are **denied**. Each party shall pay their own attorney's fees and costs for prosecuting and/or defending against this motion.

5. The hearing on Defendants' Motion to Compel Catherine's Further Response to Request for Production of Documents Nos. 1-5, calendared for July 22, 2026, is advanced to July 15, 2026. Since it is advanced to July 15, 2025, the hearing on July 22, 2026 is **vacated**.

6. Defendants Counsel is ordered to prepare and e-file proposed orders conforming to the foregoing ruling, attaching this tentative ruling, no later than ten (10) days from the date of the hearing. Defendants' Counsel shall obtain approval as to form of the proposed order from Plaintiffs' counsel.

19. 9:01 AM CASE NUMBER: C25-00985
CASE NAME: CHASE MOUTON VS. HUAN LI
HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF CATHERINE MOUTON FURTHER
RESPONSE TO FORM INTERROGATORY
FILED BY: LI, HUAN

TENTATIVE RULING:

See Line 18

20. 9:01 AM CASE NUMBER: C25-00985
CASE NAME: CHASE MOUTON VS. HUAN LI
HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF CHASE MOUTON'S FURTHER
RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENT NO.1-5
FILED BY: LI, HUAN

TENTATIVE RULING:

See Line 18